

TENTATIVE RULING

Case: **OneMain Financial Group, LLC v. Garcia**
Case No. CV2022-0914

Hearing Date: **April 24, 2026** **Department Fourteen** **9:00 a.m.**

Motion to set aside:

Defendant Monique Alicia Garcia's unopposed motion to set aside default judgment is **DENIED**. (Code Civ. Proc., § 473, subd. (b).) Defendant cannot obtain the sought relief under Code of Civil Procedure section 473(b). Defendant did not file this motion within six months after the default judgment was taken, and the motion was not "accompanied by a copy of the answer or other pleading proposed to be filed therein." (*Ibid.*)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion to vacate judgment:

Defendant's motion to vacate void judgment is **DENIED**. (Code Civ. Proc., § 473, subd. (d).) Defendant has failed to demonstrate how her declaration, filed April 3, 2026, entitles her to relief under Code of Civil Procedure section 473(d). (See Evid. Code, § 647; Cal. Rules of Court, rule 3.1113(a), (b); see also *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 933-934.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Woodland CIC LP v. Edwards**
 Case No. CV2026-0492

Hearing Date: **April 24, 2026** **Department Two** **1:30 p.m.**

Defendant Lechel Edwards’ motion to set aside default and default judgment is **DENIED**. (Code Civ. Proc., §§ 473, subds. (b) & (d), 473.5, 128, subd. (a)(8), 86, subd. (b)(3).) First, defendant has not shown that the default and default judgment were entered against her through “her mistake, inadvertence, surprise, or excusable neglect.” (Code Civ. Proc., § 473, subd. (b); *Baratti v. Baratti* (1952) 109 Cal.App.2d 917, 921; see also *Davis v. Thayer* (1980) 113 Cal.App.3d 892, 900; Edwards decl.) Third, the motion was not “accompanied by an affidavit showing under oath that [defendant’s] lack of actual notice in time to defend the action was not caused by...her avoidance of service or inexcusable neglect.” (Code Civ. Proc., § 473.5, subd. (b); Edwards decl.) Finally, defendant failed to establish that the judgment is void or was obtained through extrinsic fraud, mistake, inadvertence, or excusable neglect. (Code Civ. Proc., §§ 473, subd. (d), 128, subd. (a)(8), 86, subd. (b)(3); *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 982; Edwards decl.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.